

The preferential rates shall be charged—

- (a) in the case of tea, on and after the seventh day of October nineteen hundred and nineteen ;
- (b) in the case of spirits, on and after the seventh day of October nineteen hundred and nineteen ;
- (c) in the case of any other goods, on and after the first day of September nineteen hundred and nineteen.

THIRD SCHEDULE.

Section 6.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
3 Edw. 7. c. 35	Isle of Man (Customs) Act, 1903.	Section one. Section two. First and Second Schedules.
8 Edw. 7. c. 9	Isle of Man (Customs) Act, 1908.	Section two. Schedule.
6 & 7 Geo. 5. c. 27.	Isle of Man (Customs) Act, 1916.	Section five. Schedule.

CHAPTER 75.

An Act to enable Local Authorities to acquire existing Ferries by Agreement. [23rd December 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) A local authority may, with the consent of the Minister of Transport, purchase or accept the transfer of, and the owner of any existing ferry may sell or transfer to a local authority, upon such terms as may be agreed on between the owner and the local authority, any existing ferry which is within the area of that local authority or which serves the inhabitants of that area.

Power of local authority to acquire, &c., existing ferries.

(2) Subject to the provisions of any Act of Parliament under which the ferry was established, and to the rights of any other persons, the local authority may work, maintain and

improve the ferry and charge such tolls as were legally chargeable in respect of the ferry before the sale or transfer thereof to the local authority, or such other tolls as the local authority, with the approval of the Minister of Transport, may determine, or, with the approval of the Minister of Transport, the local authority may, if they think fit, free the ferry from tolls, and shall have the rights and powers which the owner of the ferry possessed and shall be subject to the obligations and liabilities to which he was subject.

(3) A local authority may join with any other local authority for the purchase or acceptance, working, maintenance, or improvement of a ferry under this Act, or may contribute towards the expenses of the purchase or acceptance, working, maintenance, or improvement of a ferry by another local authority, and any difference which may arise between any local authorities who are acting jointly or jointly bearing any expenses under this subsection shall be determined by the Minister of Transport, or by an arbitrator appointed by him, and such determination shall be final and binding.

(4) In this Act the expression "existing ferry" means any ferry legally established by Act of Parliament or otherwise at the date of the purchase or transfer, and includes all boats and other vessels, landing stages, approaches, apparatus, plant and other property used in connection with the ferry.

(5) The Minister of Transport shall have the like powers with respect to the holding of local inquiries for the purposes of this Act as are conferred by section eighty-seven of the Local Government Act, 1888, upon the Minister of Health for the purposes of that Act.

(6) In this Act the expression "local authority" means and includes a county council, the mayor, aldermen and burgesses of a county or other borough, and the council of any urban or rural district.

(7) Any expenses incurred by a local authority under this Act may be defrayed, in the case of a county council out of the county fund, and in the case of the council of a borough or urban or rural district as part of the general expenses incurred in the execution of the Public Health Acts, 1875 to 1908.

(8) A local authority, if a county council, may borrow for the purposes of this Act under section sixty-nine of the Local Government Act, 1888, as if those purposes were mentioned in that section, and, if a council of a county, or other borough, or a district council, shall have the same power of borrowing for the purposes of this Act as they have under the Public Health Acts, 1875 to 1908, for the purpose of defraying any expenses incurred by them in the execution of those Acts.

Protection of
general public.

2. In the case of every ferry acquired under this Act, regulations with regard to the working shall be made by the local authority for the protection from injury of passengers and the

general public : Provided that no such regulation shall have any force or validity until the same have been confirmed by the Minister of Transport with or without amendment. Offenders against such regulations shall be liable on summary conviction to such penalties, not exceeding forty shillings, as may be thereby prescribed.

3. Nothing in this Act affects prejudicially any estate, right, power, privilege, or exemption of the Crown and in particular nothing herein contained authorises any local authority to take, use, or in any manner interfere with any portion of the shore or bed of the sea or of any river, channel, creek, bay, or estuary or any land, hereditaments, subjects, or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade, as the case may be, on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give). Crown rights.

4. Without prejudice to any existing right of His Majesty, and save as provided by the Army Act, nothing in this Act shall extend to authorise any tolls to be demanded or received from any person when on duty in the service of the Crown, or for any animal, vehicle, or goods the property of, or when being used in the service of, the Crown, or returning after being so used, or from any police officer acting in the execution of his duty, or for any mail bag as defined by the Post Office Act, 1908. If any person wilfully and with intent to defraud claims or takes the benefit of any such exemption as aforesaid without being entitled thereto, he shall for every such offence be liable, on summary conviction, to a fine not exceeding ten pounds. Exemption from tolls in case of persons in service of Crown, &c.
8 Edw. 7. c. 48.

5. This Act in its application to Ireland shall be subject to the following modifications (that is to say) :— Application to Ireland.

- (1) The reference to the Minister of Health shall be construed as a reference to the Local Government Board for Ireland :
- (2) The expenses incurred by a county council shall be raised as a county at large charge :
- (3) The reference to section sixty-nine of the Local Government Act, 1888, shall be construed as a reference to article twenty-two of the schedule to the Local Government (Application of Enactments) Order, 1898, and the reference to section eighty-seven of the said Act shall be construed as a reference to article thirty-two of the said schedule, and any other references to the said Act shall be construed as a reference to the Local Government (Ireland) Act, 1898 : 61 & 62 Vict. c. 37.

- (4) The reference to the Public Health Acts, 1875 to 1908, shall be construed as a reference to the Public Health (Ireland) Acts, 1878 to 1918.

Extent and
short title.

- 6.—(1) This Act shall not extend to Scotland.
(2) This Act may be cited as the Ferries (Acquisition by Local Authorities) Act, 1919.

CHAPTER 76.

An Act to confer powers on the National Assembly of the Church of England constituted in accordance with the constitution attached as an Appendix to the Addresses presented to His Majesty by the Convocations of Canterbury and York on the tenth day of May nineteen hundred and nineteen, and for other purposes connected therewith. [23rd December 1919.]

WHEREAS the Convocations of Canterbury and York have recommended in Addresses presented to His Majesty on the tenth day of May nineteen hundred and nineteen, that, subject to the control and authority of His Majesty and of the two Houses of Parliament, powers in regard to legislation touching matters concerning the Church of England shall be conferred on the National Assembly of the Church of England constituted in the manner set forth in identical terms in the Appendix attached to their several Addresses :

And whereas it is expedient, subject to such control and authority as aforesaid, that such powers should be conferred on the Church Assembly so constituted :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Definitions.

1. In this Act—

- (1) "The National Assembly of the Church of England" (hereinafter called "the Church Assembly") means the Assembly constituted in accordance with the constitution set forth in the Appendix to the Addresses presented to His Majesty by the Convocations of Canterbury and York on the tenth day of May nineteen hundred and nineteen, and laid before both Houses of Parliament ;
- (2) "The Constitution" means the Constitution of the Church Assembly set forth in the Appendix to the Addresses presented by the Convocations of Canterbury and York to His Majesty as aforesaid ;